

Akash Ravi vs State Of Kerala on 27 November, 2025

Crl.M.C.8460/25

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2025:KER:91498

IN THE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT
THE HONOURABLE MR. JUSTICE C.PRATHEEP KUMAR
THURSDAY, THE 27TH DAY OF NOVEMBER 2025 / 6TH AGRAHAYANA, 1947
CRL.MC NO. 8460 OF 2025
CRIME NO.1465/2024 OF Pathanamthitta Police Station,
Pathanamthitta
CP NO.25 OF 2025 OF JUDICIAL MAGISTRATE OF FIRST CLASS
-I, PATHANAMTHITTA

PETITIONER/ACCUSED

AKASH RAVI
AGED 51 YEARS
S/O. D. RAVI, RAMDEV, PANDIT COLONY, KOWDIAR,
THIRUVANANTHAPURAM, PIN - 695003

BY ADVS.
SRI.SAJITH KUMAR V.
SMT.SETHULAKSHMI N.K.
SHRI.AJIN DEV S.S.
SMT.TANOOSHA PAUL

RESPONDENTS/STATE/COMPLAINANT

- 1 STATE OF KERALA
REPRESENTED BY THE PUBLIC PROSECUTOR, HIGH COURT OF
KERALA, THROUGH STATION HOUSE OFFICER,
PATHANAMTHITTA POLICE STATION, PATHANAMTHITTA
DISTRICT, PIN - 689645
- 2 XXXXXXXXXXXX
XXXXXXXXXXXX

OTHER PRESENT:

PP-SMT.MAYA M.N.

THIS CRIMINAL MISC. CASE HAVING COME UP FOR ADMISSION ON

21.11.2025, THE COURT ON 27.11.2025 PASSED THE FOLLOWING:

ORDER

Dated : 27th November, 2025 The petitioner is the sole accused in CP No. 25 of 2025 on the file of judicial magistrate of first class-1, Pathanamthitta, arising out of Crime No. 1465 of 2024 of Pathanamthitta police station. The offences alleged against the petitioner are under Section 354 and 376(2)(n) IPC.

2. The prosecution case is that the accused, after making friendship with the defacto complainant through a matrimonial advertisement, promised to marry her, had sexual intercourse with her by force and against her will at different places on different days and thereafter, he refused to marry her.

3. According to the learned counsel for the petitioner, even if the entire materials relied upon by the prosecution against the petitioner are accepted in its face value, the same will not constitute the offence under Section 376 IPC. Therefore, he prayed for quashing all further proceedings against the petitioner.

4. The petition was strongly opposed by the learned Public Prosecutor.

5. As per the F.I. Statement, the defacto complainant is working as IT professional in UK. Her first marriage with Abhilash Gopi was dissolved in October 2017. In the said marriage, she has a son aged 15.

2025:KER:91498 Since her family members insisted her to marry again, she registered her name in the matrimonial site 'Jeevan Sathi'. On 26.05.2021, the petitioner sent her a message expressing his interest and the same was accepted by her. Thereafter, there was telephone contact between them. On 08.03.2022, the petitioner promised to marry her. Accordingly, the defacto complainant reached the petitioner's residence at Kawdiar on 14.05.2022. Thereafter on 25.05.2022 she, along with the petitioner, decided to go to Kedarnath. Due to landslide, they could not go to Kedarnath. Thereafter, as instructed by the petitioner, they went to Kalahasthi Temple in Andhra Pradesh on 31.05.2022. At about 02.00 p.m. they reached a hotel there. Though she requested to take two separate rooms, the petitioner insisted that one room is enough and accordingly they stayed in one room. While she was sleeping in the bed, the accused woke up, grabbed her body and compelled her for physical relationship. At last she was compelled to submit to his demand and accordingly for the first time they had physical relationship. On the next day after returning from the temple, the petitioner, after promising to marry her, again had sexual intercourse with her, by force. On 14.06.2022, she returned to UK. Thereafter on 15.10.2022 she returned home, met the family members of the petitioner and discussed about their marriage. On 23.10.2022 when she went to the residence of the petitioner and discussed about the marriage with his brother, she came to know that the earlier

2025:KER:91498 marriage of the petitioner was not dissolved and only the divorce proceedings were pending. Therefore, the petitioner told her that there will be some delay in conducting their marriage. Thereafter, on 30.12.2022 she again returned to India and at that time the petitioner along with his mother went to the residence of the defacto complainant on 30.12.2022. At that time the petitioner hugged her and also kissed her. On 12.05.2023 she again returned from UK and on 16.05.2023 she went along with the petitioner for meditation to Kodaikanal, along with the petitioner's friend Dr. Sankar Ram. Though three separate rooms were taken in the hotel, during the night the petitioner went to the room of the defacto complainant and compelled her to have sexual intercourse with him. Though she initially resisted, finally, based upon his promise of marriage, she had to submit to his compulsion. Thereafter, As insisted by the petitioner, the defacto complainant booked a room in a hotel in Bengaluru on 20.05.2023 for celebrating the first year of their meeting. Though during the night the petitioner compelled her for sexual intercourse, she refused. Though in February 2023, she demanded the petitioner to marry her, the petitioner requested for time till April-May 2024. On 31.12.2023, as insisted by the petitioner, the defacto complainant booked a hotel room in Thiruvananthapuram. In the said hotel room also, the petitioner compelled her to have sexual intercourse with him, but she refused. Therefore, during the said night itself she returned to her residence.

2025:KER:91498 On enquiry she came to know that the petitioner already obtained divorce and also that he had relationship with other ladies.

6. According to the learned counsel for the petitioner, though the defacto complainant came to know that the marriage of the petitioner was not dissolved, as early as on 23.10.2022, their relationship continued even thereafter, they met together at different places in different hotels and had sexual intercourse with each other. According to the learned counsel, the petitioner was never unwilling to marry the defacto complainant. On the other hand, according to him, it was the defacto complainant who challenged her own divorce by filing Matrimonial Appeal against her earlier husband. Further, according to the learned counsel, all the trips were arranged by the defacto complainant herself and the payments for those trips were also met by the defacto complainant. According to the learned counsel, the petitioner only accompanied the de facto complainant to different places.

7. On a perusal of the documents produced by the petitioner also it can be seen that most of the trips to which the petitioner and the defacto complainant travelled together were booked by the defacto complainant herself. Annexure C is the air tickets for the petitioner and the defacto complainant booked by the defacto complainant for their travel from Trivandrum to Chennai on 31.05.2022. Annexure D is the details of the cab 2025:KER:91498 booked by the de facto complainant on 24.05.2022 for the journey from Chennai to Kalahasthi. Annexure F is the printout showing that the amount sent by the petitioner to the defacto complainant towards his contribution for the trip was sent back to the petitioner with the endorsement: "My treat this time so sending back". Annexure-H is a gift voucher for Rs.10,000/- taken by the defacto complainant for the petitioner on 24.06.2023, valid till 24.06.2024. Annexure-I shows that on 23.07.2023 the defacto complainant gifted two shirts to the petitioner. Annexure-K photographs show some intimate scenes between the petitioner and the defacto complainant. In those photographs the defacto complainant was seen kissing and hugging the petitioner intimately. Annexure-L is a copy of the Matrimonial Appeal No. 803 of 2018

filed by the defacto complainant against her former husband, in which she had challenged the decree of divorce granted in favour of her earlier husband.

8. Relaying upon Section 15 of the Hindu Marriage Act, the learned counsel for the petitioner would argue that during the pendency of the appeal challenging the divorce, one cannot contract another valid marriage. According to the learned counsel, still the said Matrimonial Appeal is pending before this court and as such the de facto complainant was not competent to contract another marriage.

9. Section 15 of the Hindu Marriage Act reads as follows :-

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15. Divorced persons when may marry again.-

When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again. "

10. In the decision in Prashant v. State of NCT of Delhi, (2025) 5 SCC 764, in paragraph 18 the Apex Court held thus :

"It is inconceivable that the complainant would continue to meet the appellant or maintain a prolonged association or physical relationship with him in the absence of voluntary consent on her part. Moreover, it would have been improbable for the appellant to ascertain the complainant's residential address, as mentioned in the FIR unless such information had been voluntarily provided by the complainant herself."

11. Referring to two other earlier decisions, the Apex Court in paragraph 23 further held that :

"Recently this Court in XXXX vs. State of Madhya Pradesh, (2024) 3 SCC 496 held that when the relationship between the parties was purely consensual and when the complainant was aware of the consequences of her actions, the ingredients of the offence of rape were not made out. Similarly, in Pramod Suryabhan Pawar v. State of Maharashtra, (2019) 9 SCC 608 arising out of identical facts, this Court has enumerated the following:

"18. To summarise the legal position that emerges from the above cases, the "consent" of a woman with respect to 2025:KER:91498 Section 375 must involve an active and reasoned deliberation towards the proposed act. To establish whether the "consent"

was vitiated by a "misconception of fact" arising out of a promise to marry, two propositions must be established. The promise of marriage must have been a false promise, given in bad faith and with no

intention of being adhered to at the time it was given. The false promise itself must be of immediate relevance, or bear a direct nexus to the woman's decision to engage in the sexual act."

12. In the decision in Mahesh Damu Khare v. The State of Maharashtra and Another, (2024) 11 SCC 398, in paragraph 27 & 28 the Apex Court held that :

"27. In our view, if a man is accused of having sexual relationship by making a false promise of marriage and if he is to be held criminally liable, any such physical relationship must be traceable directly to the false promise made and not qualified by other circumstances or consideration. A woman may have reasons to have physical relationship other than the promise of marriage made by the man, such as personal liking for the male partner without insisting upon formal marital ties.

28. Thus, in a situation where physical relationship is maintained for a prolonged period knowingly by the woman, it cannot be said with certainty that the said physical relationship was purely because of the alleged promise made by the appellant to marry her. Thus, unless it can be shown that the physical relationship was purely because of the promise of marriage, thereby having a direct nexus with the physical relationship without being influenced by any other consideration, it cannot be said that there was vitiation of consent under misconception of fact."

13. In paragraph 30, 39 and 40, the Apex Court further held that :

30. It may be also noted that there may be occasions where a 2025:KER:91498 promise to marry was made initially but for various reasons, a person may not be able to keep the promise to marry. If such promise is not made from the very beginning with the ulterior motive to deceive her, it cannot be said to be a false promise to attract the penal provisions of Section 375 IPC, punishable under Section 376 IPC.

39. In our view if criminality is to be attached to such prolonged physical relationship at a very belated stage, it can lead to serious consequences. It will open the scope for imputing criminality to such long term relationships after turning sour, as such an allegation can be made even at a belated stage to drag a person in the juggernaut of stringent criminal process. There is always a danger of attributing criminal intent to an otherwise disturbed civil relationship of which the Court must also be mindful.

40. It is evident from the large number of cases decided by this Court dealing with similar matters as discussed above that there is a worrying trend that consensual relationships going on for prolonged period, upon turning sour, have been sought to be criminalised by invoking criminal jurisprudence."

14. In *Jothiragawan v. State Rep. By the Inspector of Police and Ors.*, MANU/SC/0377/2025 the victim accompanied the accused to a hotel room wherein she was allegedly raped by him. In spite of that, she again went along with him in the same hotel room and complained that he committed rape upon her again and again. In the above background in paragraph 11 and 12 the Apex Court held as follows :

11. We have already found that there is no promise of marriage 2025:KER:91498 to coerce consent from the victim for sexual intercourse; as forthcoming from the statements made by the victim. The promise if any was after the first physical intercourse and even later the allegation was forceful intercourse without any consent. In all the three instances it was the allegation that, the intercourse was on threat and coercion and there is no consent spoken of by the victim, in which case there cannot be any inducement found, on a promise held out. The allegation of forceful intercourse on threat and coercion is also not believable, given the relationship admitted between the parties and the willing and repeated excursions to hotel rooms.

12. On a reading of the statements made by the victim before the Police, both the First Information Statement and that recorded later on, we are not convinced that the sexual relationship admitted by both the parties was without the consent of the victim. That they were closely related and were in a relationship is admitted by the victim. The allegation is also of threat and coercion against the victim, to have sexual intercourse with the accused, which even as per the victim's statement was repeated thrice in the same manner, when she willingly accompanied the accused to a hotel room. The victim had also categorically stated that after the first incident and the second incident she was mentally upset, but that did not caution her from again accompanying the accused to hotel rooms.

15. In the decision in *Biswajyoti Chatterjee v. State of West Bengal and Another*, 2025 5 SCC 749 in paragraph 21 the Apex Court held that :

2025:KER:91498 "We find that there is a growing tendency of resorting to initiation of criminal proceedings when relationships turn sour. Every consensual relationship, where a possibility of marriage may exist, cannot be given a colour of a false pretext to marry, in the event of a fall out. It is such lis that amounts to an abuse of process of law, and it is under such circumstances, that we deem fit to terminate the proceedings at the stage of charge itself. "

16. In the decision in *Deepak Gulati v. State of Haryana*, (2013) 7 SCC 675, in paragraph 21 & 24, the Apex Court held that:

"21. Consent may be express or implied, coerced or misguided, obtained willingly or through deceit. Consent is an act of reason, accompanied by deliberation, the mind weighing, as in a balance, the good and evil on each side. There is a clear distinction

between rape and consensual sex and in a case like this, the court must very carefully examine whether the accused had actually wanted to marry the victim, or had mala fide motives, and had made a false promise to this effect only to satisfy his lust, as the latter falls within the ambit of cheating or deception. There is a distinction between the mere breach of a promise, and not fulfilling a false promise. Thus, the court must examine whether there was made, at an early stage a false promise of marriage by the accused; and whether the consent involved was given after wholly, understanding the nature and consequences of sexual indulgence. There may be a case where the prosecutrix agrees to have sexual intercourse on account of her love and passion for the accused, and not solely on account of mis-representation made to her by the accused, or where an accused on account of circumstances which he could not have 2025:KER:91498 foreseen, or which were beyond his control, was unable to marry her, despite having every intention to do so. Such cases must be treated differently. An accused can be convicted for rape only if the court reaches a conclusion that the intention of the accused was mala fide, and that he had clandestine motives.

24. Hence, it is evident that there must be adequate evidence to show that at the relevant time i.e. at the initial stage itself, the accused had no intention whatsoever, of keeping his promise to marry the victim. There may, of course, be circumstances, when a person having the best of intentions is unable to marry the victim owing to various unavoidable circumstances. The "failure to keep a promise made with respect to a future uncertain date, due to reasons that are not very clear from the evidence available, does not always amount to misconception of fact. In order to come within the meaning of the term "misconception of fact", the fact must have an immediate relevance". Section 90 IPC cannot be called into aid in such a situation, to pardon the act of a girl in entirety, and fasten criminal liability on the other, unless the court is assured of the fact that from the very beginning, the accused had never really intended to marry her".

17. In the decision in State of Haryana v. Ch.Bhajan Lal and Others (AIR 1992 SC 604), after analyzing various decisions, the Apex Court dealt with the circumstances under which the extra ordinary power under Article 226 of the Constitution of India or the inherent power under Section 482 Cr.P.C could be exercised in paragraph 104 as follows :-

104. In the backdrop of the interpretation of the various relevant provisions of the Code under Chap.XIV and of the 2025:KER:91498 principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Art.226 or the inherent powers under S.482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any Court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

1. Where the allegations made in the First Information Report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

2. Where the allegations in the First Information Report and other materials, if any, accompanying the F. I. R. do not disclose a cognizable offence, justifying an investigation by police officers under S.156 (1) of the Code except under an order of a Magistrate within the purview of S.155(2) of the Code.

3. Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

4. Where, the allegations in the F.I.R. do not constitute a cognizable offence but constitute only a non cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under 2025:KER:91498 S.155(2) of the Code.

5. Where the allegations made in the F.I.R. or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

6. Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/ or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

7. Where a criminal proceeding is manifestly attended with mala fide and/ or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

18. In the decision in *Rajnish Singh Alias Soni v. State of Uttar Pradesh and Another*, (205) 4 SCC 197, after referring to various decisions in paragraph 30, the Apex Court held that :

"30. In conclusion, the Court held that unless it can be shown that the physical relationship was purely because of the promise of marriage and without being influenced by any other consideration, it cannot be said that there was vitiation of consent under misconception of fact. It was further held that even if it is assumed that a false promise of marriage was made to the complainant initially by the accused, the fact that the relationship continued for a period of nine long years would render the plea of the complainant that her consent for all these years was under

misconception of the fact that the accused would marry her 2025:KER:91498 implausible."

19. In paragraph 34 of the above decision the Court further held that :

"34. We cannot remain oblivious to the fact that it was mostly the complainant who used to travel to meet the appellant at his place of posting. Therefore, we are convinced that the relationship between the complainant and appellant was consensual without the existence of any element of deceit or misconception."

20. In the decision in Hiran Das Murali v. State of Kerala, (2025) SCC OnLine Ker. 6693, in paragraph 12 this court held that : -

"The statement of the victim has been narrated in detail as above, since, a reading of her version, prima facie, indicates an instance of a romantic relationship which turned sour subsequently and the parties involved broke up their relationship. Though there is a reference that, on the first occasion, she gave permission only for a kiss, he proceeded to rape her, the statement mentions that after the alleged rape, he continued to stay with her in her apartment for the next three days and again visited her on several occasions and again stayed with her. It is baffling and difficult to comprehend, at this juncture at least, how, if the petitioner had raped her on the first day, she would still have allowed him to remain in her apartment for the following three days or even on later and regularly engage in a physical relationship with him. The above circumstances are prima facie, suggestive of a consensual relationship."

21. In the decision in Pradeep Kumar Kesarwani v. State of Uttar Pradesh, 2025 KHC OnLine 7489, the Apex Court has laid down 2025:KER:91498 the steps to determine the veracity of a prayer for quashing a proceeding under Section 482 of Cr.P.C and held in paragraph 20 as follows :-

"20. The following steps should ordinarily determine the veracity of a prayer for quashing, raised by an accused by invoking the power vested in the High Court under Section 482 of the Cr.P.C.:

(i) Step one, whether the material relied upon by the accused is sound, reasonable, and indubitable, i.e., the material is of sterling and impeccable quality?

(ii) Step two, whether the material relied upon by the accused, would rule out the assertions contained in the charges levelled against the accused, i.e., the material is sufficient to reject and overrule the factual assertions contained in the complaint, i.e., the material is such, as would persuade a reasonable person to dismiss and condemn the factual basis of the accusations as false.

(iii) Step three, whether the material relied upon by the accused, has not been refuted by the prosecution/complainant; and/or the material is such, that it cannot be

justifiably refuted by the prosecution/complainant?

(iv) Step four, whether proceeding with the trial would result in an abuse of process of the court, and would not serve the ends of justice?

If the answer to all the steps is in the affirmative, judicial conscience of the High Court should persuade it to quash such criminal - proceedings, in exercise of power vested in it under Section 482 of the Cr.P.C. Such exercise of power, besides doing justice to the accused, would save precious court time, which would otherwise be wasted in holding such a trial (as well as, proceedings arising therefrom) specially when, it is clear that the same would not conclude in the conviction of the accused. [(See:

2025:KER:91498 Rajiv Thapar v. Madan Lal Kapoor (Criminal Appeal No. 174 of 2013)]"

22. Therefore, the crucial question to be considered is whether at the very inception there is mutual consent to have sexual intercourse or the same is under a misconception of fact, on the promise of marriage or otherwise. Unless there is evidence to show that at the initial stage itself, the accused had no intention whatsoever of keeping his promise to marry the victim, the offence under Section 376 IPC will not be attracted.

23. In the instant case, the defacto complainant is a qualified IT professional working in UK. On a perusal of the materials available on record it can be seen that the marriage of the petitioner was not dissolved when the relationship between the petitioner and the defacto complainant began in October 2022, Admittedly on 23.10.2022, the defacto complainant came to know that the marriage of the petitioner was not dissolved. Even then she maintained her relationship with the petitioner, travelled along with him to various places, stayed along with him in various hotels. During most of the time the expenses were met by the defacto complainant herself. Air tickets and the cabs were also booked by her. Even the contribution sent by the petitioner for the trip was returned stating that it is her turn to treat the petitioner 2025:KER:91498

24. From Annexure-L, it is also revealed that the defacto complainant herself preferred Matrimonial Appeal against the divorce decree granted against her and in favour of her husband. As argued by the learned counsel for the petitioner, in the light of Section 15 of the Hindu Marriage Act, during the pendency of the Matrimonial Appeal, the defacto complainant could not have entered into a valid marriage with the petitioner. In the above circumstances, the contention of the defacto complainant that the marriage could not be solemnized only because of the default of the petitioner, could not be believed. Since even after the defacto complainant came to know that the petitioner is not a divorcee, she accompanied him to various places, stayed along with him in various hotels and had sexual intercourse with him, there is every reason to believe that the relationship between the petitioner and the defacto complainant was a consensual one. Though she claimed that she had consented for the relationship because of the promise of marriage also cannot be believed, as at the time of such relationship, the petitioner was not a divorcee and even the defacto complainant was not competent to contract another marriage, in the light of the pendency of the Matrimonial Appeal filed by her. Therefore, in the light of the materials available on record, it is to be held that there is

no merits in the claim of the defacto complainant that the accused committed rape upon her after promising to marry her. In the above circumstance, no useful 2025:KER:91498 purpose will be served in continuing the proceedings against the petitioner and as such this CrL.MC is liable to be allowed and all further proceedings against the petitioner is liable to be quashed by invoking the power under Section 528 BNSS.

In the result, this CrLMC is allowed and all further proceedings against the petitioner in pursuance to C.P. No. 25 of 2025 on the file of the Judicial First Class Magistrate Court-I, Pathanamthitta, stands quashed under section 528 BNSS.

Sd/- C.Pratheep Kumar, Judge MrCs/24.11.25